

16. 9:00 AM CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

***HEARING ON MOTION FOR DISCOVERY MTC RFA ANSWERS, PRODUCTION OF DOCUMENTS FOR INSPECTION, MONETARY AND EVIDENTIARY/ISSUE SANCTION ON DEFT MELISSA SWEEZEY FILED BY:**

TENTATIVE RULING:

Plaintiff Antonio Virelas has filed this Motion to Compel responses to Requests for Admission and Requests for Production of Documents. Defendant Melissa Sweezy has filed no timely opposition. On April 21, 2026, she filed a "RESPONSE TO PLAINTIFF'S SUPPLEMENTAL STATEMENT OF FACTS AND REQUEST FOR ORDER TO DEEM ALL REQUESTED ADMISSIONS TRUE FOR MISCONDUCT TO PROVIDE OBJECTIONS OR RESPONSES RE: MOTION TO COMPEL AND SANCTIONS ON DEFENDANT." That document contains absolutely no information relating to the discovery requests and reads like an Answer. It is notable that Defendant had not filed an answer to the First Amended Complaint, so it is possible she got her captions confused. In any event, as of the date of this Tentative Ruling, the Court has received no opposition to the motion, let alone one that is timely.

Before the Court is unrefuted information the Plaintiff has propounded discovery and Defendant has entirely failed to respond.

It is unclear whether Plaintiff seeks monetary sanctions, as he has not articulated an amount sought. He does, however, clearly outline the other sanctions sought. He seeks an order prohibiting Defendant from:

1. Introducing and/or asserting any facts in support of Defendant's claims, defenses, and/or contentions, which are responsive to Plaintiff's discovery requests, at trial or in support/defense of any dispositive motions.
2. Producing, introducing, and/or identifying any witnesses, the identities of which are responsive to Plaintiff's discovery requests, in support of Defendant's claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
3. Producing, introducing, and/or identifying any documents, which are responsive to Plaintiff's discovery requests, in support of her claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
4. Introducing any facts or documentary evidence that are responsive to the Plaintiff's request for production at trial or in support/defense of any dispositive motions.

Given the uncontested information before the Court, these issue sanctions are **granted**.

17. 9:00 AM CASE NUMBER: N25-2180

CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: NEWREZ LLC

TENTATIVE RULING:

This matter is scheduled for hearing on **July 9, 2026, at 9:00 am** in this department.

18. 9:00 AM CASE NUMBER: N25-2191

CASE NAME: CLAIM OF:ISA OGULISA OGUL

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Ibrahim Ogul filed on November 5, 2025 a Petition for Approval of Compromise of Minor Isa Oguls's ("Minor") Claim Against Natalie Konz and Monterey Pines Apartments ("Petition"). The Court orders appearance of counsel and the Guardian Ad Litem. Zoom is acceptable.

Background

On September 18, 2023, Minor Ogul was bitten by a dog. He suffered puncture wounds to his left eyebrow, below his left eye, and a major puncture wound to his left cheek. He was treated and discharged. Petitioner avers that Minor has recovered completely.

At this time, Defendant Monterey Pines Apartments has offered settlement in the amount of \$60,000. There are the following deductions: \$9,216.00 for medical expenses (after deductions), \$15,000 in attorneys' fees, and \$3,181.28 in costs. The remainder, \$32,602.72 remains to be paid for the benefit of the Minor. The Court could not locate a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court has questions to confirm that the Minor's injuries are full recovered. The medical records provided indicated the possibility of surgery in the future, as well as ongoing lingering issues relating to the trauma of the experience. Additionally, it is not clear whether this is a settlement of the entire matter (including Natalie Konz). If these issues are resolved to the Court's satisfaction, then the compromise will be approved. Finally, the Court needs to ensure that the Guardian Ad Litem understands that (1) if subsequent events show that the injuries have not fully healed, he cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18, unless the court orders otherwise.

19. 9:00 AM CASE NUMBER: N25-2361

CASE NAME: CLAIM OF:SARAH AVINA

***HEARING ON MINOR'S COMPROMISE**

FILED BY: